

26TRCV01243 26TRCV01243

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-19

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Case Number: 26TRCV01243 Hearing Date: August 19, 2026 Dept: P

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. P

JINJU
PARK,

Plaintiff

Case No.:

26TRCV01243

vs.

[Tentative]
RULING RE:

MOTION
TO SET ASIDE DEFAULT

LUIS

ALBERTO ESPANA; AMERICAN CONTRACTORS INDEMNITY COMPANY; and DOES 1-50,
inclusive,

Defendants.

Hearing

Date: August 19, 2026

Department

P, Judge David K. Reinert

Motion

to Set Aside Default

Moving

Party: Defendant

Luis Alberto Espana

Responding Party: None

RULING

The court

considered the moving papers. Moving Defendant's Motion to Set Aside Default is
GRANTED.

PROCEDURAL BACKGROUND

On April 7, 2026, Plaintiff Jinju Park ("Plaintiff") filed a complaint
against Defendants Luis Alberto Espana, American Contractors Indemnity Company,
and DOES 1 through 50, inclusive (collectively, "Defendants"), alleging fifteen
causes of action for: (1) Negligence; (2) Breach of Express Warranty; (3)
Breach of Implied Warranty; (4) Strict Liability; (5) Breach of Contract; (6)
Fraud & Deceit – By Misrepresentation; (7) Fraud & Deceit – By
Concealment; (8) Violation of Business & Professions Code Section 7159; (9)
Violation of Business & Professions Code Section 7160; (10) Negligent
Misrepresentation; (11) Conversion; (12) Unjust Enrichment; (13) Accounting;
(14) Action on Performance Bonds; and (15) Unfair Business Practices in
Violation of Business and Professions Code Section 17200.

On April 23, 2026, Plaintiff filed a first amended complaint ("FAC") against Defendants, alleging the same fifteen causes of action.

On July 2, 2026, default was entered against Defendant Luis Alberto Espana ("Moving Defendant").

On July 14, 2026, Plaintiff's fourteenth and fifteenth causes of action against Defendant American Contractors Indemnity Company were dismissed without prejudice.

On July 20, 2026, Moving Defendant filed the instant motion.

FACTUAL BACKGROUND

Plaintiff

alleges that on June 10, 2025, Moving Defendant presented to Plaintiff two construction budget proposals regarding the remodeling of Plaintiff's home. (FAC, ¶ 12.) Plaintiff alleges that on June 24, 2025, Plaintiff and Moving Defendant, in the name of Espana Builders, entered into a written contract for the remodel of Plaintiff's home (the "Prime Contract"). (FAC, ¶ 13.) Plaintiff alleges that Moving Defendant led Plaintiff to believe that Moving Defendant owned and operated a valid company while Moving Defendant knew that Espana Builders did not exist as a legal business entity. (FAC, ¶ 14.) Plaintiff alleges that pursuant to the terms of the Prime Contract, Plaintiff was to pay a total of \$277,997.50, broken down into several "progress payments." (FAC, ¶ 15.) Plaintiff alleges that pursuant to the terms of the Prime Contract, the building construction work was to be substantially completed by November 30, 2025, which did not occur. (FAC, ¶¶ 17-18.) Plaintiff alleges that Moving Defendant continued performing home improvement work in December 2025, during which Moving Defendant began demanding payment in advance. (FAC, ¶ 18.) Plaintiff alleges that Moving Defendant failed to appear on the job site or send workers during multiple periods of time between January 2026 and February 2026. (FAC, ¶ 19.) Plaintiff alleges that on February 13, 2026, she notified Moving Defendant that he had overcharged her by at least \$35,525.00, after which Moving Defendant provided a written response stating that no money would be returned to Plaintiff. (FAC, ¶ 20.) Plaintiff further alleges that Moving Defendant performed negligent construction work and failed to complete the work that he was obligated to perform pursuant to the Prime Contract. (FAC, ¶¶ 21, 24-25.)

LEGAL STANDARD

Code of Civil Procedure Section 473(d) provides that “[t]he court may . . . on motion of either party after notice to the other party, set aside any void judgment or order.” A default judgment is void against a defendant who was not served with a summons in the manner prescribed by statute. (See *Sakaguchi v. Sakaguchi* (2009) 173 Cal.App.4th 852, 858.) Relief pursuant to Section 473(d) may be made at any time. (See *Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42.)

Code of Civil Procedure Section 415.20(b) provides that “[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.”

Code of Civil Procedure Section 473.5 provides that, “[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action and a default . . . has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default . . . and for leave to defend the action.” The notice must be served and filed “within a reasonable time, but in no event exceeding . . . 180 days after service on him or her of a written notice that the default . . . has been entered.” (Code Civ. Proc. Section 473.5(a).) Upon a finding by the Court that “the motion was made within the period permitted by subdivision (a) and that his or her lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect, it may set aside the default . . . on whatever terms as may be just and allow the party to defend the action.” (Code Civ. Proc. Section 473.5(c).) “Actual notice” under this statute means “genuine knowledge of the party litigant,” and not “constructive notice” or “imputed notice.” (*Rosenthal v. Garner* (1983), 142 Cal. App. 3d 891, 895.)

DISCUSSION

Moving Party's Argument

Moving Defendant argues that the default entered against him is void due to improper service of process, because Plaintiff attempted substituted service by mailing the summons and complaint to a United States Postal Service ("USPS") Post Office Box, which is prohibited by Code of Civil Procedure Section 415.20(b). Moving Defendant argues that Plaintiff did not exercise the requisite reasonable diligence before attempting substituted service. In the alternative, Moving Defendant moves pursuant to Code of Civil Procedure Section 473.5 on the grounds that Plaintiff's service of the summons and complaint did not result in actual notice to Moving Defendant and the lack of actual notice was not caused by Moving Defendant's avoidance of service or inexcusable neglect.

Merits of the Motion

Moving Defendant moves to set aside the default entered against him pursuant to Code of Civil Procedure Section 473(d), on the grounds that Plaintiff improperly served Moving Defendant by mailing the summons and complaint to a USPS Post Office Box. Moving Defendant argues that he only discovered Plaintiff's lawsuit when the summons and complaint were "incidentally retrieved" from the USPS Post Office Box. (Mot. 3:22-24.)

The court has independently reviewed the proof of service, which indicates that substituted service was accepted on May 22, 2026 by employee Nancy Valentino at 19528 Ventura Boulevard, Suite 492 in Tarzana, California. (Proof of Service, ¶¶ 4, 5b.) The attached Declaration of Diligence states that a registered process server attempted service at Moving Defendant's business address twice before serving Nancy Valentino. (Proof of Service, p. 3.) The Declaration of Diligence states that upon the process server's first attempt, "[n]o one answered," and upon the second attempt, the business was closed. (Proof of Service, p. 3.)

The court finds that the proof of service does not reflect Moving Defendant's statement that service was only made by delivering the summons and complaint to a USPS Post Office Box. Substituted service may be made on a person "apparently in charge" of a defendant's usual place of business pursuant to Code of Civil Procedure Section 415.20(b) if other methods of service are

unsuccessful.

However, Moving Defendant declares that he maintains his primary business and residential address at 20929 Silvergate Way in Newhall, California (the "Newhall Address"). (Espana Decl., ¶ 3.) Moving Defendant declares that the Newhall Address is "explicitly listed on the final page of the June 24, 2025 Prime Contract executed with Plaintiff," and is "prominently displayed on the header of all seventeen (17) invoices generated by [Moving Defendant's] company during the course of the project." (Espana Decl., ¶ 3.) Moving Defendant declares that "[a]t no time did a process server or any other individual attempt to personally serve [Moving Defendant] with a summons and complaint at [the Newhall Address]." (Espana Decl., ¶ 11.) Moving Defendant declares that he did not evade service or instruct anyone to refuse service. (Espana Decl., ¶ 11.)

Given that the proof of service fails to indicate that any attempt to serve Moving Defendant at the Newhall Address was made, the court finds that service was not proper under Code of Civil Procedure Section 415.20.

Accordingly, Moving Defendant's Motion to Set Aside Default is GRANTED.

CONCLUSION

Based on the foregoing, Moving Defendant's Motion to Set Aside Default is GRANTED.

Moving party is ordered to give notice of ruling.